



CHAPTER cxvii.

An Act to confirm certain Provisional Orders made by the Board of Trade under the Tramways Act 1870 relating to Audenshaw Urban District Council Tramway Huddersfield Corporation Tramway Leeds Corporation Tramways Taunton Tramways (Extension) and West Ham Corporation Tramways.

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[2nd August 1907.]

WHEREAS under the authority of the Tramways Act 1870 the Board of Trade have made the several Provisional Orders set out in the schedule to this Act annexed :

33 & 34 Vict.
c. 78.

And whereas a Provisional Order made by the Board of Trade under the authority of the said Act is not of any validity or force whatever until the confirmation thereof by Act of Parliament :

And whereas it is expedient that the several Provisional Orders made by the Board of Trade under the authority of the said Act and set out in the schedule to this Act annexed be confirmed by Act of Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited as the Tramways Orders Confirmation Act 1907.

Short title.

2. The several Orders as amended and set out in the schedule to this Act annexed shall be and the same are hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full force and validity and the dates of the same respectively shall be the date of the passing of this Act.

Confirmation
of Orders in
schedule.

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SCHEDULE.

LIST OF ORDERS.

AUDENSHAW URBAN DISTRICT COUNCIL TRAMWAY.—Order authorising the Urban District Council of Audenshaw in the County of Lancaster to construct the tramway in their district authorised by the Audenshaw Urban District Tramway Order 1899.

HUDDERSFIELD CORPORATION TRAMWAY.—Order authorising the Mayor Aldermen and Burgesses of the County Borough of Huddersfield to construct an additional tramway in the said Borough and for other purposes.

LEEDS CORPORATION TRAMWAYS.—Order authorising the Lord Mayor Aldermen and Citizens of the City of Leeds to construct additional tramways in their City.

TAUNTON TRAMWAYS (EXTENSION).—Order authorising the Taunton Electric Traction Company Limited to construct an additional tramway in the Borough of Taunton in the County of Somerset.

WEST HAM CORPORATION TRAMWAYS. — Order authorising the Mayor Aldermen and Burgesses of the County Borough of West Ham to construct tramways in their Borough.

AUDENSHAW URBAN DISTRICT COUNCIL.

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Order authorising the Urban District Council of Audenshaw in the County of Lancaster to construct the Tramway in their District authorised by the Audenshaw Urban District Tramway Order 1899.

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1. This Order may be cited as the Audenshaw Urban District Council Tramway Order 1907 and the Audenshaw Urban District Tramway Order 1899 and this Order may be jointly cited as the Audenshaw Urban District Council Tramway Orders 1899 and 1907.

Short and collective titles.

2. The urban district council of Audenshaw shall be the Promoters for the purposes of this Order and are in this Order referred to as "the Promoters."

Promoters.

3. The whole of the sections and the schedule of the Audenshaw Urban District Tramway Order 1899 with the exception of section 1 (Short title) the proviso to section 2 (Incorporation of Acts) section 4 (Promoters) and section 26 (For protection of Postmaster-General) are hereby incorporated in this Order and this Order shall be read and construed as if such sections and schedule were specifically enacted and set out herein.

Powers of construction &c.

4. Section 30 (except subsections 1 and 5 thereof) of the Tramways Act 1870 in its application to the tramway undertaking of the Promoters shall have effect as if wires or apparatus laid in a road included wires or apparatus erected or carried over a road or footpath.

Application of section 30 of Tramways Act 1870 to overhead wires.

5.—(1) It shall be lawful for the Postmaster-General in any street or public road or part of a street or public road in which he is authorised to place a telegraph to use for the support of such telegraph any posts and standards (with the brackets connected therewith) erected in any such street or public road by the Promoters in connexion with the tramway authorised by the Audenshaw Urban District Tramway Order 1899 and to lengthen adapt alter and replace such posts standards and brackets for the purpose of supporting any telegraph and from time to time to alter any telegraph so supported subject to the following conditions:—

Use of tramway posts by Postmaster-General.

(a) In placing maintaining or altering such telegraph no obstruction shall be caused to the traffic along or the working or user of the tramway:

(b) The Postmaster-General shall give to the Promoters not less than twenty-eight days notice in writing of his intention to exercise any of the powers of this section and shall in such notice specify the streets or public roads or parts of streets or public roads along which it is proposed to exercise such powers and the manner in which it is proposed to use the posts standards and brackets and also the maximum strain and the nature and direction of such strain Any difference as to any matter referred to in such notice shall be determined as herein-after provided:

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- (c) Unless otherwise agreed between the Postmaster-General and the Promoters the Postmaster-General shall pay the expense of lengthening adapting altering or replacing under the provisions of this section any post standard or bracket and the expense of providing and maintaining any appliances or making any alteration rendered necessary in consequence of the exercise of the powers of this section for the protection of the public or the unobstructed working or user of the tramway or to prevent injurious affection of the Postmaster-General's telegraphs or any telegraphic or telephonic line or electrical apparatus of the Promoters or by any regulations which may from time to time be made by the Board of Trade arising through the exercise by the Postmaster-General of the powers conferred by this section :
- (d) Unless otherwise agreed or in case of difference determined as herein-after provided all telegraphs shall be attached to the posts standards or brackets below the level of the trolley wires and on the side of such posts or standards farthest from the trolley wires Any difference as to the conditions of attachment shall be determined as herein-after provided :
- (e) Unless otherwise agreed no telegraph shall be attached to any post or standard placed in or near the centre of any street or public road :
- (f) The Postmaster-General shall cause all attachments to posts standards or brackets used by him under the powers of this section to be from time to time inspected so as to satisfy himself that the said attachments are in a proper state of condition and repair :
- (g) The Postmaster General shall make good to the Promoters and shall indemnify them against any loss damage or expense which may be incurred by them through or in consequence of the exercise by the Postmaster-General of the powers conferred upon him by this section unless such loss damage or expense be caused by or arise from gross negligence on the part of the Promoters their officers or servants :
- (h) The Postmaster-General shall make such reasonable contribution to the original cost of providing and placing any post standard or bracket used by him and also to the annual cost of the maintenance and renewal of any such post standard or bracket as having regard to the respective interests of the Promoters and the Postmaster-General in the use of the post standard or bracket and to all the circumstances of each case may be agreed upon between the Postmaster-General and the Promoters or failing agreement determined as herein-after provided :
- (i) The Promoters shall not be liable for any interference with or damage or injury to the telegraphs of the Postmaster-General

arising through the exercise by the Postmaster-General of the powers conferred by this section and caused by the maintaining and working of the tramway or by any accident arising thereon or by the authorised use by the Promoters of electrical energy unless such interference damage or injury be caused by gross negligence on the part of the Promoters their officers or servants :

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(j) If it shall become necessary or expedient to alter the position of or remove any post standard or bracket the Postmaster-General shall upon receiving twenty-eight days notice thereof at his own expense alter or remove the telegraph supported thereby or at his option retain the post standard or bracket and pay the Promoters the value of the same Provided that if the Promoters or the body having the control of the street or public road object to the retention of the post standard or bracket by the Postmaster-General a difference shall be deemed to have arisen and shall be determined as herein-after provided.

(2) Nothing in this section contained shall prevent the Promoters from using their posts standards or brackets for the support of any of their electric wires and apparatus whether in connexion with their tramways or other municipal undertakings or shall take away any existing right of the Promoters of using or permitting the use by any company or person of their posts standards or brackets in connexion with the lighting of the streets or otherwise Provided that any difference between the Postmaster-General and such company or person in relation to the use of the posts standards or brackets by the Postmaster-General and such company or person respectively shall be determined as herein-after provided.

(3) All differences arising under this section shall be determined in manner provided by sections 4 and 5 of the Telegraph Act 1878 for the settlement of differences relating to a street or public road.

(4) In this section the expression "telegraph" has the same meaning as in the Telegraph Act 1869 and other expressions have the same meaning as in the Telegraph Act 1878.

(5) In this section the expression "Promoters" includes their lessees.

6.—(a) Notwithstanding anything in this Order contained if any of the works by this Order authorised involves or is likely to involve any alteration of any telegraphic line belonging to or used by His Majesty's Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alteration.

For protection
of Postmaster-
General.

(b) In the event of the tramway or any part thereof being worked by electricity the following provisions shall have effect :—

(1) The Promoters shall construct their electric lines and other works of all descriptions and shall work the undertaking in all respects

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with due regard to the telegraphic lines from time to time used or intended to be used by the Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of the undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein Any difference which arises between the Postmaster-General and the Promoters as to compliance with this subsection shall be referred to arbitration:

- (2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Promoters of their electric lines and works or by the working of the undertaking the Promoters shall pay the expenses of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection:
- (3) Before any electric line is laid down or any act or work for working the tramway by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Promoters or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Promoters and their agents shall conform with such reasonable requirements (either general or special) as may be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work Any difference which arises between the Postmaster-General and the Promoters as to any requirements so made shall be referred to arbitration:
- (4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works by this Order authorised is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of any such works or to the working of the undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated for the purposes of this Order at any works of the Promoters enter thereon for the purpose of inspecting the plant and the working of the same and the Promoters shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Promoters pursuant to the Board of Trade regulations:

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- (5) In the event of any contravention of or wilful non-compliance with this section by the Promoters or their agents the Promoters shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :
- (6) Provided that nothing in this section shall subject the Promoters or their agents to a fine under this section if they satisfy the court having cognizance of the case that the immediate doing of any act or the execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice :
- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work :
- (8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Order :
- (9) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882 :
- (10) Any question or difference arising under this section which is directed to be referred to arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Promoters or their agents were a company within the meaning of that Act :
- (11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Promoters by indictment action or otherwise in relation to any of the matters aforesaid :
- (12) In this section the expression "the Promoters" includes any person owning working or running carriages over any of the tramways of the Promoters.

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HUDDERSFIELD CORPORATION.

Huddersfield Corporation. *Order authorising the Mayor Aldermen and Burgesses of the County Borough of Huddersfield to construct an additional Tramway in the said Borough and for other purposes.*

Short title. 1. This Order may be cited as the Huddersfield Corporation Tramway Order 1907.

Incorporation of Act. 2. The provisions of the Tramways Act 1870 are hereby incorporated with this Order except where the same are inconsistent with or expressly varied by this Order.

Interpretation. 3. The several words terms and expressions to which by the Tramways Act 1870 meanings are assigned have in this Order the same respective meanings Provided that in this Order—

The expression “the tramway” means the tramway and works by this Order authorised ;

The expression “the tramway undertaking” includes the tramway undertakings respectively authorised by the Huddersfield Improvement Act 1880 the Huddersfield Corporation Act 1882 the Huddersfield Tramways and Improvement Act 1890 the Huddersfield Corporation Act 1897 the Huddersfield Corporation Tramways Order 1897 the Huddersfield Corporation Tramways Order 1898 the Huddersfield Corporation Tramways Order 1900 the Huddersfield Corporation Tramways Act 1900 the Huddersfield Corporation Tramways Order 1903 and the Huddersfield Corporation Act 1906 ; and

The expression “the Corporation” means the Mayor Aldermen and Burgesses of the County Borough of Huddersfield acting by the Council.

Promoters. 4. The Corporation shall be the Promoters for the purposes of this Order and are in this Order referred to as “the Promoters.”

Construction of tramway. 5. The Promoters may construct and maintain subject to the provisions of this Order and in accordance with the plans and sections deposited for the purposes of this Order at the office of the Board of Trade the tramway hereinafter described with all proper rails plates offices weighbridges stables carriage-houses warehouses works and conveniences connected therewith or for the purposes thereof :

Provided that nothing in this Order or in any Act wholly or in part incorporated therewith shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section.

[7 EDW. 7.] *Tramways Orders Confirmation Act, 1907.* [Ch. cxvii.]

The tramway authorised by this Order will be wholly situate in the borough of Huddersfield and is—

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Tramway No. 1 about 6 furlongs 8·41 chains in length commencing in Blackmoorfoot Road at a point opposite Crosland Hill Road passing thence along or over the said Blackmoorfoot Road and Barton Road and there terminating by a junction with the existing tramway of the Corporation at a point about three yards north-east of Park Road:

Tramway No. 1 will be laid as a single line except between the following points where it will be laid as a double line (that is to say):—

In Barton Road between two points respectively 90 yards and 24 yards south-west of Ivy Street and between two points respectively 9 yards south-west and 57 yards north-east of Charles Street.

The proposed tramway shall be constructed on the same gauge as the existing tramways of the Promoters that is to say on a gauge of four feet seven and three quarter inches and there shall not be run thereon carriages or trucks adapted for use on railways.

6. The tramway shall for all purposes form part of the tramway undertaking and the Promoters and their lessees and licencees may in respect of the tramway exercise and enjoy all and the like powers rights privileges and authorities which they now may or are empowered to exercise and enjoy and shall be subject and liable to the like penalties conditions restrictions and stipulations as they are subject and liable to with respect to the tramway undertaking or any part thereof and may demand take and recover in respect of the tramway or any part or parts thereof the like tolls rates and charges for the use thereof and for the conveyance thereon of traffic of all kinds and for the use of carriages placed and run thereon by them as they are authorised to demand and take in respect of the tramways authorised by the Huddersfield Corporation Tramways Order 1897 Provided that nothing in this Order shall be deemed to extend the provisions of section 23 of the Huddersfield Corporation Tramways Act 1900 to the tramway by this Order authorised or to authorise the taking of lands otherwise than by agreement.

Tramway to form part of tramway undertaking.

7.—(1) It shall be lawful for the Postmaster-General in any street or public road or part of a street or public road in which he is authorised to place a telegraph to use for the support of such telegraph any posts and standards (with the brackets connected therewith) erected in any such street or public road by the Promoters in connexion with the tramway and to lengthen adapt alter and replace such posts standards and brackets for the purpose of supporting any telegraph and from time to time to alter any telegraph so supported subject to the following conditions:—

Use of tramway posts by Postmaster-General.

(a) In placing maintaining or altering such telegraph no obstruction shall be caused to the traffic along or the working or user of the tramway:

(b) The Postmaster-General shall give to the Promoters not less than twenty-eight days notice in writing of his intention to exercise any of the powers of this section and shall in such notice specify

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the streets or public roads or parts of streets or public roads along which it is proposed to exercise such powers and the manner in which it is proposed to use the posts standards and brackets and also the maximum strain and the nature and direction of such strain Any difference as to any matter referred to in such notice shall be determined as herein-after provided :

- (c) Unless otherwise agreed between the Postmaster-General and the Promoters the Postmaster-General shall pay the expense of lengthening adapting altering or replacing under the provisions of this section any post standard or bracket and the expense of providing and maintaining any appliances or making any alteration rendered necessary in consequence of the exercise of the powers of this section for the protection of the public or the unobstructed working or user of the tramway or to prevent injurious affection of the Postmaster-General's telegraphs or any telegraphic or telephonic line or electrical apparatus of the Promoters or by any regulations which may from time to time be made by the Board of Trade arising through the exercise by the Postmaster-General of the powers conferred by this section :
- (d) Unless otherwise agreed or in case of difference determined as herein-after provided all telegraphs shall be attached to the posts standards or brackets below the level of the trolley wires and on the side of such posts or standards farthest from the trolley wires Any difference as to the conditions of attachment shall be determined as herein-after provided :
- (e) Unless otherwise agreed no telegraph shall be attached to any post or standard placed in or near the centre of any street or public road :
- (f) The Postmaster-General shall cause all attachments to posts standards or brackets used by him under the powers of this section to be from time to time inspected so as to satisfy himself that the said attachments are in a proper state of condition and repair :
- (g) The Postmaster-General shall make good to the Promoters and shall indemnify them against any loss damage or expense which may be incurred by them through or in consequence of the exercise by the Postmaster-General of the powers conferred upon him by this section unless such loss damage or expense be caused by or arise from gross negligence on the part of the Promoters their officers or servants :
- (h) The Postmaster-General shall make such reasonable contribution to the original cost of providing and placing any post standard or bracket used by him and also to the annual cost of the maintenance and renewal of any such post standard or bracket as having regard to the respective interests of the Promoters and the Postmaster-General in the use of the post standard or

bracket and to all the circumstances of each case may be agreed upon between the Postmaster-General and the Promoters or failing agreement determined as herein-after provided :

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- (i) The Promoters shall not be liable for any interference with or damage or injury to the telegraphs of the Postmaster-General arising through the exercise by the Postmaster-General of the powers conferred by this section and caused by the maintaining and working of the tramway or by any accident arising thereon or by the authorised use by the Promoters of electrical energy unless such interference damage or injury be caused by gross negligence on the part of the Promoters their officers or servants :
- (j) If it shall become necessary or expedient to alter the position of or remove any post standard or bracket the Postmaster-General shall upon receiving twenty-eight days notice thereof at his own expense alter or remove the telegraph supported thereby or at his option retain the post standard or bracket and pay the Promoters the value of the same Provided that if the Promoters or the body having the control of the street or public road object to the retention of the post standard or bracket by the Postmaster-General a difference shall be deemed to have arisen and shall be determined as herein-after provided.

(2) Nothing in this section contained shall prevent the Promoters from using their posts standards or brackets for the support of any of their electric wires and apparatus whether in connexion with their tramways or other municipal undertakings or shall take away any existing right of the Promoters of using or permitting the use by any company or person of their posts standards or brackets in connexion with the lighting of the streets or otherwise Provided that any difference between the Postmaster-General and such company or person in relation to the use of the posts standards or brackets by the Postmaster-General and such company or person respectively shall be determined as herein-after provided.

(3) All differences arising under this section shall be determined in manner provided by sections 4 and 5 of the Telegraph Act 1878 for the settlement of differences relating to a street or public road.

(4) In this section the expression "telegraph" has the same meaning as in the Telegraph Act 1869 and other expressions have the same meaning as in the Telegraph Act 1878.

(5) In this section the expression "Promoters" includes their lessees.

8. Nothing in this Order contained shall exempt the Promoters or any person using the tramway or the tramway from the provisions of any general Act relating to tramways passed before or after the commencement of this Order or from any future revision or alteration under the authority of Parliament of the maximum rates of tolls or charges authorised by this Order.

Saving for
general Acts.

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LEEDS CORPORATION.

Leeds Corporation.

Order authorising the Lord Mayor Aldermen and Citizens of the City of Leeds to construct additional Tramways in their City.

Short title.

1. This Order may be cited as the Leeds Corporation Tramways Order 1907.

Incorporation of Acts.

2. The following Acts and parts of Acts so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Order are hereby incorporated with this Order:—

The Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the Promoters of the undertaking):

Section 3 (Interpretation of terms) section 19 (Local authority may lease or take tolls) and Parts II. and III. of the Tramways Act 1870 Provided that section 19 shall be read and have effect as if the words “but nothing in this Act contained shall authorise any “local authority to place and run carriages upon such tramways and “to demand and take tolls and charges in respect of the use of such “carriages” were omitted from that section.

Promoters.

3. The lord mayor aldermen and citizens of the city of Leeds acting by the Council shall be the Promoters for the purposes of this Order and are in this Order referred to as “the Promoters.”

Construction of tramways.

4. The Promoters may subject to the provisions of this Order construct and maintain in accordance with the plans and sections deposited at the office of the Board of Trade for the purposes of this Order as the same have been amended previous to the passing of the Act confirming this Order (which plans and sections so amended as aforesaid are in this Order referred to respectively as “the deposited plans” and “the deposited sections”) the tramways herein-after described with all proper rails plates sleepers channels junctions turntables turnouts crossings passing-places posts poles brackets wires stables carriage-houses engine-houses sheds buildings works and conveniences connected therewith:

Provided that nothing in this Order or in any Act wholly or in part incorporated therewith shall extend to or authorise any interference with any works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section.

The tramways authorised by this Order will be wholly situate within the city of Leeds and are as follows (that is to say):—

Tramway No. 1 (4 furlongs 6·22 chains in length whereof 2 furlongs 6·91 chains are single line and 1 furlong 9·31 chains are double line) commencing in Hunslet Road by a junction with the existing tramway in that road at a point 12 yards north-west of the intersection of the centre lines of Holdsworth Street and Hunslet Road

thence proceeding into and along South Accommodation Road in an easterly direction and terminating in Easy Road by a junction with the existing tramway in that road at the termination of that tramway :

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Tramway No. 1 will be laid as a single line except at the following places where it will be double:—

(a) In Hunslet Road and South Accommodation Road from the commencement of the tramway for a distance of 32 yards measured in an easterly direction ;

(b) In South Accommodation Road from a point 7 yards west of the intersection of the centre lines of Orchard Street and South Accommodation Road for a distance of 50 yards measured in an easterly direction ;

(c) In South Accommodation Road from a point 17 yards east of the intersection of the centre lines of Parson Street and South Accommodation Road for a distance of 48 yards measured in an easterly direction ;

(d) In South Accommodation Road from a point 2 yards east of the intersection of the centre lines of Clarence Road and South Accommodation Road for a distance of 235 yards measured in an easterly direction ;

(e) In South Accommodation Road from a point 7 yards north of the intersection of the centre lines of Prospect Avenue and South Accommodation Road for a distance of 50 yards ;

(f) In South Accommodation Road and Easy Road from a point in South Accommodation Road 12 yards north of the intersection of the centre lines of Bank Farm Street and South Accommodation Road to the termination of the tramway in Easy Road :

Tramway No. 2 (5 furlongs 1·70 chains in length whereof 3 furlongs 8·60 chains are double line and 1 furlong 3·10 chains are single line) commencing in Kirkgate by a junction with the existing tramway in that road at a point 18 yards west of the intersection of the centre lines of East Street and Kirkgate thence proceeding into and along East Street in a south-easterly direction to and terminating in Cross Green Lane at the intersection of the centre lines of Lawrence Street and Cross Green Lane :

Tramway No. 2 will be laid as a double line except at the following places where it will be single:—

(a) In Kirkgate and East Street from the commencement of the tramway for a distance of 15 yards measured in an easterly direction along the line of tramway ;

(b) In East Street from a point 20 yards west of the easterly corner of the Crown Point Axle Works for a distance of 82 yards measured in an easterly direction ;

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(c) In East Street from a point 22 yards west of the intersection of the line if extended of the western party wall of the Waterloo Inn and the centre line of East Street for a distance of 100 yards measured in an easterly direction;

(d) In East Street from a point 17 yards east of the intersection of the centre lines of Hill House Court and East Street for a distance of 82 yards measured in an easterly direction;

(e) In Cross Green Lane from a point 10 yards west of the intersection of the centre lines of Lawrence Street and Cross Green Lane to the termination of the tramway;

Tramway No. 3 (1 mile 3 furlongs 0·6 chain in length whereof 6 furlongs 2·7 chains are double line and 4 furlongs 7·9 chains are single line) wholly situate in Otley Road commencing by a junction with the existing tramway in that road at the termination of that tramway and terminating at the city boundary at Lawnswood:

Tramway No. 3 will be laid as a double line except at the following places where it will be single:—

(a) From the intersection of the centre lines of the gateway to Weetwood Mount and Otley Road for a distance of 197 yards measured in a northerly direction;

(b) From a point 127 yards north of the intersection of the centre lines of the Drive from Weetwood Hall and Otley Road for a distance of 340 yards measured in a northerly direction;

(c) From a point 177 yards north of the intersection of the centre lines of Otley Road and Old Otley Road for a distance of 500 yards measured in a northerly direction;

(d) From a point 17 yards south of the city boundary at Lawnswood to the termination of the tramway.

Application of provisions of Leeds Corporation (Consolidation) Act 1905 to tramways authorised by this Order.

5. The powers and provisions with regard to tramways contained in the Leeds Corporation (Consolidation) Act 1905 and section 7 of the Leeds Corporation Tramways Order 1905 shall apply to the tramways by this Order authorised as if they were Corporation tramways as defined by section 4 of that Act. Provided that nothing in this Order shall be deemed to authorise the affixing of posts brackets wires or other apparatus to any house or building without the consent of the owners and occupiers thereof

For protection of Great Northern Railway Company.

6. The following provisions for the protection of the Great Northern Railway Company (in this section called "the Company") shall unless otherwise agreed between the Promoters and the Company in writing under their respective common seals apply and have effect:—

In working Tramway No. 3 cars shall not be stopped for the purpose of taking up or setting down passengers on the bridge over the River Aire in South Accommodation Road or at any point opposite the Company's premises in that road except opposite to the point marked "A" in red on the amended copy of the deposited plans deposited with the Board of Trade.

7.—(1) It shall be lawful for the Postmaster-General in any street or public road or part of a street or public road in which he is authorised to place a telegraph to use for the support of such telegraph any posts and standards (with the brackets connected therewith) erected in any such street or public road by the Promoters in connexion with the tramways authorised by this Order and to lengthen adapt alter and replace such posts standards and brackets for the purpose of supporting any telegraph and from time to time to alter any telegraph so supported subject to the following conditions :—

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Use of tramway posts by Postmaster-General.

- (a) In placing maintaining or altering such telegraph no obstruction shall be caused to the traffic along or the working or user of the tramways :
- (b) The Postmaster-General shall give to the Promoters not less than twenty-eight days notice in writing of his intention to exercise any of the powers of this section and shall in such notice specify the streets or public roads or parts of streets or public roads along which it is proposed to exercise such powers and the manner in which it is proposed to use the posts standards and brackets and also the maximum strain and the nature and direction of such strain Any difference as to any matter referred to in such notice shall be determined as herein-after provided :
- (c) Unless otherwise agreed between the Postmaster-General and the Promoters the Postmaster-General shall pay the expense of lengthening adapting altering or replacing under the provisions of this section any post standard or bracket and the expense of providing and maintaining any appliances or making any alteration rendered necessary in consequence of the exercise of the powers of this section for the protection of the public or the unobstructed working or user of the tramways or to prevent injurious affection of the Postmaster-General's telegraphs or any telegraphic or telephonic line or electrical apparatus of the Promoters or by any regulations which may from time to time be made by the Board of Trade arising through the exercise by the Postmaster-General of the powers conferred by this section :
- (d) Unless otherwise agreed or in case of difference determined as herein-after provided all telegraphs shall be attached to the posts standards or brackets below the level of the trolley wires and on the side of such posts or standards farthest from the trolley wires Any difference as to the conditions of attachment shall be determined as herein-after provided :
- (e) Unless otherwise agreed no telegraph shall be attached to any post or standard placed in or near the centre of any street or public road :

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Corporation.

- (f) The Postmaster-General shall cause all attachments to posts standards or brackets used by him under the powers of this section to be from time to time inspected so as to satisfy himself that the said attachments are in a proper state of condition and repair :
- (g) The Postmaster-General shall make good to the Promoters and shall indemnify them against any loss damage or expense which may be incurred by them through or in consequence of the exercise by the Postmaster-General of the powers conferred upon him by this section unless such loss damage or expense be caused by or arise from gross negligence on the part of the Promoters their officers or servants :
- (h) The Postmaster-General shall make such reasonable contribution to the original cost of providing and placing any post standard or bracket used by him and also to the annual cost of the maintenance and renewal of any such post standard or bracket as having regard to the respective interests of the Promoters and the Postmaster-General in the use of the post standard or bracket and to all the circumstances of each case may be agreed upon between the Postmaster-General and the Promoters or failing agreement determined as herein-after provided :
- (i) The Promoters shall not be liable for any interference with or damage or injury to the telegraphs of the Postmaster-General arising through the exercise by the Postmaster-General of the powers conferred by this section and caused by the maintaining and working of the tramways or by any accident arising thereon or by the authorised use by the Promoters of electrical energy unless such interference damage or injury be caused by gross negligence on the part of the Promoters their officers or servants :
- (j) If it shall become necessary or expedient to alter the position of or remove any post standard or bracket the Postmaster-General shall upon receiving twenty-eight days notice thereof at his own expense alter or remove the telegraph supported thereby or at his option retain the post standard or bracket and pay the Promoters the value of the same Provided that if the Promoters or the body having the control of the street or public road object to the retention of the post standard or bracket by the Postmaster-General a difference shall be deemed to have arisen and shall be determined as herein-after provided.
- (2) Nothing in this section contained shall prevent the Promoters from using their posts standards or brackets for the support of any of their electric wires and apparatus whether in connexion with their tramways or other municipal undertakings or shall take away any existing right of the Promoters of using or permitting the use by any company or person of their posts standards or brackets in connexion with the lighting of the streets or otherwise Provided that any difference between the Postmaster-General

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and such company or person in relation to the use of the posts standards or brackets by the Postmaster-General and such company or person respectively shall be determined as herein-after provided. .

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Leeds Corporation.

(3) All differences arising under this section shall be determined in manner provided by sections 4 and 5 of the Telegraph Act 1878 for the settlement of differences relating to a street or public road.

(4) In this section the expression "telegraph" has the same meaning as in the Telegraph Act 1869 and other expressions have the same meaning as in the Telegraph Act 1878.

(5) In this section the expression "Promoters" includes their lessees.

TAUNTON (EXTENSION).

Order authorising the Taunton Electric Traction Company Limited to construct an additional Tramway in the Borough of Taunton in the County of Somerset.

Taunton (Extension).

Preliminary.

1. This Order may be cited as the Taunton Tramways (Extension) Order 1907. Short title.

2. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the Promoters of the undertaking) and of the Tramways Act 1870 are hereby incorporated with this Order except where the same are inconsistent with or expressly varied by this Order. Incorporation of Acts.

3. The several words terms and expressions to which by the Acts in whole or in part incorporated with this Order meanings are assigned have in this Order (unless the context otherwise requires) the same respective meanings And in this Order— Interpretation.

The expression "the Order of 1900" means the Taunton Tramways Order 1900;

The expression "the tramway" means the tramway and works authorised by this Order or (as the case may be) any part thereof;

The expression "the tramways of 1900" means the tramways and works authorised by the Order of 1900 or (as the case may be) any part thereof;

The expression "the undertaking" means the undertaking by this Order authorised;

The expression "the undertaking of 1900" means the undertaking authorised by the Order of 1900.

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Taunton
(*Extension*).
Promoters.

Promoters.

4. The Taunton Electric Traction Company Limited shall be the Promoters for the purposes of this Order and are in this Order referred to as "the Promoters."

Construction of Tramway.

Power to con-
struct tram-
way.

5. The Promoters may construct and thereafter maintain subject to the provisions of this Order and in accordance with the plans and sections deposited at the office of the Board of Trade for the purposes of this Order (which plans and sections are in this Order referred to respectively as "the deposited plans" and "the deposited sections") the tramway herein-after described with all proper rails points cross-overs plates sleepers offices weigh-bridges stables carriage-houses engine sheds warehouses works and conveniences connected therewith or for the purposes thereof and may work and use the same.

The tramway authorised by this Order will be situate wholly within the parish of St. James Within in the borough of Taunton in the county of Somerset and is—

A tramway (single and double line) wholly in the borough of Taunton and parish of St. James Within in the county of Somerset commencing in Station Road 25 yards or thereabouts north of the south corner of the Great Western Railway engine shed by a junction with the existing tramways passing thence into and along and terminating in Kingston Road 10 yards or thereabouts north of the north-west corner of Salisbury Street where it joins with Kingston Road.

The said tramway will be 3 furlongs 2·82 chains in length and will be a single line except between the following points where it will be a double line viz.:—

- (1) From the commencement of the tramway for a distance of 6 chains in a northerly direction :
- (2) From a point 33 yards or thereabouts south of the centre of St. Andrew's Road for a distance of 73 yards or thereabouts measured in a northerly direction :
- (3) From a point 12 yards or thereabouts south of the centre of Gladstone Street for a distance of 73 yards or thereabouts in a northerly direction.

Extending to
this Order cer-
tain sections of
Order of 1900.

6. The following sections of the Order of 1900 and the schedule annexed thereto shall so far as the same are applicable extend and apply as varied by this Order to the tramway and the undertaking in like manner in every respect as if the tramway and the undertaking formed part of the tramways of 1900 and the undertaking of 1900 and for the purpose of such application the expression "the tramways" and "the undertaking"

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in the said provisions shall be construed to include the tramway and the undertaking as defined by this Order (that is to say):—

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(Extension).

- Section 5 (Lands by agreement).
- Section 7 (For the protection of the Great Western Railway Company).
- Section 8 (Position in road of tramways).
- Section 9 (Gauge of tramways).
- Section 10 (Provisions as to construction of tramways).
- Section 12 (Promoters and road authority may contract for repairing road and constructing tramways).
- Section 13 (Application of road materials excavated in construction of works).
- Section 14 (Rails of tramways).
- Section 15 (Penalty for not maintaining rails and road in good condition).
- Section 16 (Local authority to have access to sewers).
- Section 17 (Tramways to be kept on level of surface of road).
- Section 18 (Additional crossovers &c. may be made where necessary).
- Section 19 (Temporary tramways may be made where necessary).
- Section 20 (As to manholes).
- Section 21 (As to removal of snow &c.).
- Section 22 (Tramways not to be opened until certified by Board of Trade).
- Section 23 (Provisions as to motive power).
- Section 24 (Mechanical power works).
- Section 25 (Mechanical power works to be subject to section 30 of Tramways Act 1870).
- Section 26 (Byelaws).
- Section 27 (Amendment of the Tramways Act 1870 as to byelaws by local authority).
- Section 28 (Special provisions as to use of electrical power as motive power).
- Section 30 (Traffic on tramways).
- Section 31 (Promoters not bound to carry animals goods &c.).
- Section 32 (Provision as to conveyance of animals goods &c. in separate carriages).
- Section 33 (Carriages constructed for use on railways not to be used).
- Section 34 (As to use of bells).
- Section 35 (Service of cars).
- Section 36 (Local authorities and road authorities may use tramways for certain purposes).
- Section 37 (Agreements between Promoters and road authorities as to user and for facilitating traffic on tramways).
- Section 38 (Tolls for passengers).

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(*Extension*).

- Section 39 (As to fares on Sundays and holidays).
- Section 40 (Passengers' luggage).
- Section 41 (Cheap fares for labouring classes).
- Section 42 (Rates and charges for animals goods &c.).
- Section 43 (Payment of rates).
- Section 44 (Periodical revision of rates and charges).
- Section 46 (Saving as to powers of borrowing on mortgage).
- Section 47 (Orders &c. of the Board of Trade).
- Section 48 (Recovery and application of penalties).
- Section 49 (Form and delivery of notices).
- Section 50 (Provisions as to arbitration).
- Section 51 (Saving for general Acts).
- The Schedule.

Application of
section 30 of
Tramways Act
1870 to over-
head wires.

7. Section 30 (except subsections 1 and 5 thereof) of the Tramways Act 1870 in its application to the tramway shall have effect as if wires or apparatus laid in a road included wires or apparatus erected or carried over a street road or footpath.

Amendment of
Order of 1900.

8.—(1) Sections 29 (For the protection of Postmaster-General) and 45 (As to purchase of the undertaking by local authority) of the Order of 1900 are hereby repealed.

(2) Section 32 (Provision as to conveyance of animals goods &c. in separate carriages) of the Order of 1900 shall be read and construed as if the words

“or to parcels not exceeding 56 pounds in weight”
had been added at the end of that section.

For protec-
tion of Great
Western Rail-
way Company.

9. The following provisions for the protection of the Great Western Railway Company (in this section called “the Great Western Company”) shall unless otherwise agreed between the Promoters and the Great Western Company in writing under their respective common seals apply and have effect:—

(1) If having regard to the proposed position of the works of the Promoters by this Order authorised when considered in relation to the position of the works of the Great Western Company at any point where the wires of the Great Western Company pass over the tramway it is advisable in order to guard against any danger which might arise from such wires breaking or falling that the electric telegraphic telephonic or signal wires or apparatus of the Great Western Company should be altered the Great Western Company may execute any works reasonably necessary for such alteration and the reasonable expense of executing such works shall be borne by the Promoters:

(2) Any matter in difference between the Promoters and the Great Western Company under this section shall unless otherwise agreed be referred to the arbitration of a person nominated by the Board of Trade.

10. Where in any road in which a double line of the tramway by this Order authorised is laid there shall be less width between the outside of the footpath on either side of the road and the nearest rail of the tramway than nine feet six inches the Promoters shall if and when required by the Board of Trade construct a cross-over or cross-overs connecting the one tramway with the other and by the means of such cross-over or cross-overs the traffic shall when necessary be diverted from one tramway to the other.

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Taunton
(*Extension*).

Cross-overs to be constructed in certain cases.

11.—(1) It shall be lawful for the Postmaster-General in any street or public road or part of a street or public road in which he is authorised to place a telegraph to use for the support of such telegraph any posts and standards (with the brackets connected therewith) erected in any such street or public road by the Promoters in connexion with the tramway and to lengthen adapt alter and replace such posts standards and brackets for the purpose of supporting any telegraph and from time to time to alter any telegraph so supported subject to the following conditions:—

Use of tramway posts by Postmaster-General.

- (a) In placing maintaining or altering such telegraph no obstruction shall be caused to the traffic along or the working or user of the tramway :
- (b) The Postmaster-General shall give to the Promoters not less than twenty-eight days notice in writing of his intention to exercise any of the powers of this section and shall in such notice specify the streets or public roads or parts of streets or public roads along which it is proposed to exercise such powers and the manner in which it is proposed to use the posts standards and brackets and also the maximum strain and the nature and direction of such strain Any difference as to any matter referred to in such notice shall be determined as herein-after provided :
- (c) Unless otherwise agreed between the Postmaster-General and the Promoters the Postmaster-General shall pay the expense of lengthening adapting altering or replacing under the provisions of this section any post standard or bracket and the expense of providing and maintaining any appliances or making any alteration rendered necessary in consequence of the exercise of the powers of this section for the protection of the public or the unobstructed working or user of the tramway or to prevent injurious affection of the Postmaster-General's telegraphs or any telegraphic or telephonic line or electrical apparatus of the Promoters or by any regulations which may from time to time be made by the Board of Trade arising through the exercise by the Postmaster-General of the powers conferred by this section :
- (d) Unless otherwise agreed or in case of difference determined as herein-after provided all telegraphs shall be attached to the posts standards or brackets below the level of the trolley wires

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Taunton
(*Extension*).

and on the side of such posts or standards farthest from the trolley wires Any difference as to the conditions of attachment shall be determined as herein-after provided :

- (e) Unless otherwise agreed no telegraph shall be attached to any post or standard placed in or near the centre of any street or public road :
- (f) The Postmaster-General shall cause all attachments to posts standards or brackets used by him under the powers of this section to be from time to time inspected so as to satisfy himself that the said attachments are in a proper state of condition and repair :
- (g) The Postmaster-General shall make good to the Promoters and shall indemnify them against any loss damage or expense which may be incurred by them through or in consequence of the exercise by the Postmaster-General of the powers conferred upon him by this section unless such loss damage or expense be caused by or arise from gross negligence on the part of the Promoters their officers or servants :
- (h) The Postmaster-General shall make such reasonable contribution to the original cost of providing and placing any post standard or bracket used by him and also to the annual cost of the maintenance and renewal of any such post standard or bracket as having regard to the respective interests of the Promoters and the Postmaster-General in the use of the post standard or bracket and to all the circumstances of each case may be agreed upon between the Postmaster-General and the Promoters or failing agreement determined as herein-after provided :
- (i) The Promoters shall not be liable for any interference with or damage or injury to the telegraphs of the Postmaster-General arising through the exercise by the Postmaster-General of the powers conferred by this section and caused by the maintaining and working of the tramway or by any accident arising thereon or by the authorised use by the Promoters of electrical energy unless such interference damage or injury be caused by gross negligence on the part of the Promoters their officers or servants :
- j) If it shall become necessary or expedient to alter the position of or remove any post standard or bracket the Postmaster-General shall upon receiving twenty-eight days notice thereof at his own expense alter or remove the telegraph supported thereby or at his option retain the post standard or bracket and pay the Promoters the value of the same Provided that if the Promoters or the body having the control of the street or public road object to the retention of the post standard or bracket by the Postmaster-General a difference shall be deemed to have arisen and shall be determined as herein-after provided.

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(2) Nothing in this section contained shall prevent the Promoters from using their posts standards or brackets for the support of any of their electric wires and apparatus in connexion with their tramways or shall take away any existing right of the local authority of using the posts standards or brackets of the Promoters in connexion with the lighting of the streets or otherwise Provided that any difference between the Postmaster-General and the local authority in relation to the use of the posts standards or brackets by the Postmaster-General and the local authority respectively shall be determined as hereinafter provided.

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(*Extension*).

(3) All differences arising under this section shall be determined in manner provided by sections 4 and 5 of the Telegraph Act 1878 for the settlement of differences relating to a street or public road.

(4) In this section the expression "telegraph" has the same meaning as in the Telegraph Act 1869 and other expressions have the same meaning as in the Telegraph Act 1878.

(5) In this section the expression "Promoters" includes their lessees.

12.—(A) Notwithstanding anything in this Order or in the Order of 1900 contained if any of the works by this Order or the Order of 1900 authorised involves or is likely to involve any alteration of any telegraphic line belonging to or used by His Majesty's Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alteration.

For protection
of Postmaster-
General.

(B) In the event of the tramway or the tramways of 1900 being worked by electricity the following provisions shall have effect:—

(1) The Promoters shall construct their electric lines and other works of all descriptions and shall work the undertaking and the undertaking of 1900 in all respects with due regard to the telegraphic lines from time to time used or intended to be used by the Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of the undertaking and the undertaking of 1900 to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein Any difference which arises between the Postmaster-General and the Promoters as to compliance with this subsection shall be referred to arbitration :

(2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Promoters of their electric lines and works or by the working of the undertaking or the undertaking of 1900 the Promoters shall pay the expenses of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection :

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Taunton
(*Extension*).

- (3) Before any electric line is laid down or any act or work for working the tramway or the tramways of 1900 by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Promoters or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Promoters and their agents shall conform with such reasonable requirements (either general or special) as may be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work. Any difference which arises between the Postmaster-General and the Promoters as to any requirements so made shall be referred to arbitration:
- (4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works by this Order or by the Order of 1900 authorised is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of any such works or to the working of the undertaking or of the undertaking of 1900 the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated for the purposes of this Order or of the Order of 1900 at any works of the Promoters enter thereon for the purpose of inspecting the plant and the working of the same and the Promoters shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Promoters pursuant to the Board of Trade regulations:
- (5) In the event of any contravention of or wilful non-compliance with this section by the Promoters or their agents the Promoters shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues:
- (6) Provided that nothing in this section shall subject the Promoters or their agents to a fine under this section if they satisfy the court having cognizance of the case that the immediate doing of any act or the execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice:

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(7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work :

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Taunton
(*Extension*).

(8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Order :

(9) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882 :

(10) Any question or difference arising under this section which is directed to be referred to arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Promoters or their agents were a company within the meaning of that Act :

(11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Promoters by indictment action or otherwise in relation to any of the matters aforesaid :

(12) In this section the expression "the Promoters" includes any person owning working or running carriages over the tramway or any of the tramways of 1900.

13. Notwithstanding anything in this Order or in the Order of 1900 or in the Tramways Act 1870 contained—

Purchase of
tramway and
tramways of
1900.

(1) The powers of purchase given by section 43 of the Tramways Act 1870 shall not as regards the undertaking or the undertaking of 1900 be exerciseable by the local authority in whose district the tramway or the tramways of 1900 are situate on the terms of purchase in the said section mentioned until the expiration of forty years from the date of the passing of the Act confirming this Order ;

The period of twenty-one years mentioned in section 43 of the Tramways Act 1870 shall in respect of the undertaking and of the undertaking of 1900 be deemed to be a period of forty years from the date of the passing of the Act confirming this Order and the periods of seven years in such section mentioned shall be deemed to be periods of seven years subsequent to such period of forty years :

(2) The powers of purchase given by section 43 of the Tramways Act 1870 shall be exerciseable as regards the undertaking and the undertaking of 1900 at the expiration of a period of 33 years from the passing of the Act confirming this Order upon payment to the Promoters of the fair market value thereof

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Taunton
(*Extension*).

as a going concern but without any allowance for compulsory purchase such value to be in case of difference determined by an engineer or other fit person nominated as referee by the Board of Trade on the application of either party and the expense of the reference to be borne and paid as the referee directs and in such cases the period and the terms of purchase in the said section 43 mentioned shall as regards the said undertaking be deemed to be the respective period of 33 years and the terms of purchase by this subsection prescribed :

- (3) The undertaking and the undertaking of 1900 shall only be purchaseable by the local authority at one and the same time.

WEST HAM CORPORATION.

West Ham Corporation.

Order authorising the Mayor Aldermen and Burgesses of the County Borough of West Ham to construct Tramways in their Borough.

Short title.

1. This Order may be cited as the West Ham Corporation Tramways Order 1907.

Incorporation of Acts.

2. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the Promoters of the undertaking) and of the Tramways Act 1870 are hereby incorporated with this Order except where the same are inconsistent with or expressly varied by this Order.

Interpretation.

3. The several words terms and expressions to which by the Acts in whole or in part incorporated with this Order meanings are assigned have in this Order the same respective meanings Provided that in this Order—

The expressions “the Act of 1898” “the Act of 1900” “the Act of 1902” and “the Order of 1904” mean respectively the West Ham Corporation Act 1898 the West Ham Corporation Act 1900 the West Ham Corporation Act 1902 and the West Ham Corporation Tramways Order 1904 ;

The expression “the borough” means the county borough of West Ham ;

The expression “the Corporation” means the mayor aldermen and burgesses of the borough acting by the council ;

The expression “the tramways” means the tramways and works by this Order authorised ;

The expression “the tramway undertaking” means and includes the tramways and works connected therewith authorised by the Act of 1900 the Act of 1902 and the Order of 1904 and the tramways

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in the borough authorised by the Leyton Urban District Council Act 1904 and this Order and any tramways and works connected therewith which have been or may be purchased by the Corporation or which for the time being belong to the Corporation;

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West Ham Corporation.

The expression "mechanical power" has the meaning assigned to it by the Act of 1898.

4. The Corporation shall be the Promoters for the purposes of this Order and are in this Order referred to as "the Promoters."

Promoters.

5. The Promoters may—

Lands by agreement.

(A) Subject to the sanction of the Local Government Board and under such conditions as they may prescribe from time to time appropriate and use for the purposes of the tramway undertaking but subject to the provisions (if any) under which such lands were respectively acquired any lands not dedicated to public use from time to time vested in them being part of their corporate estate;

(B) By agreement from time to time purchase and acquire for the purposes of the tramway undertaking such lands as they may require and may from time to time sell let or dispose of any such lands which may not be necessary for such purposes Provided that all sums received by the Promoters from the sale of such lands or from fines or premiums on leases of the same shall be applied solely in repayment of outstanding loans and that such moneys shall not be applied to the payment of instalments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board:

Provided that they shall not at any time hold for such purposes under the provisions of this Order more than two acres of land in addition to the lands which they are already authorised to hold for those purposes Provided always that nothing in this Order shall exonerate the Promoters from every indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon lands taken or appropriated under the powers of this section.

6. The Promoters may subject to the provisions of this Order—

Construction of tramways.

(A) Construct and maintain in accordance with the plans and sections deposited at the offices of the Board of Trade for the purposes of this Order (which plans and sections are in this Order referred to respectively as "the deposited plans" and "the deposited sections") the tramways herein-after described with all proper rails points junctions plates works and conveniences connected therewith as may be necessary or proper therefor and for connecting and using the same with the existing or authorised tramways of the Promoters or for the purposes thereof;

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*West Ham
Corporation.*

(B) Erect or construct on any lands acquired or appropriated under the powers of this Order any offices stables sheds workshops stores waiting rooms or other buildings yards works and conveniences for the purposes of the tramway undertaking and provide the same with all necessary or convenient fixtures fittings and furniture:

Provided that nothing in this Order or in any Act wholly or in part incorporated therewith shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section.

The tramways will be wholly situate within the borough and are as follows (that is to say):—

Tramway No. 1 (2 furlongs 7·80 chains or thereabouts in length) commencing in High Street Plaistow by a junction with the existing tramway of the Corporation in that street at a point 28 yards or thereabouts north of the junction of that street with Balaam Street Plaistow passing thence in an easterly direction along the said High Street into and along Greengate Street to and terminating by a junction with the existing tramway of the Corporation in Barking Road at a point 20 yards or thereabouts north-east of the junction of Greengate Street with that road:

Tramway No. 1 will be laid as a double line throughout:

Tramway No. 1A (1·80 chains or thereabouts in length) commencing in Balaam Street Plaistow by a junction with the existing tramway of the Corporation in that street at a point 10 yards or thereabouts south of the junction of that street with High Street Plaistow passing thence in an easterly direction into and along High Street Plaistow and terminating in that street by a junction with Tramway No. 1 hereinbefore described at a point 32 yards or thereabouts east of the junction of High Street Plaistow with Balaam Street:

Tramway No. 1A will be laid as a single line throughout:

Tramway No. 1B (1·20 chains or thereabouts in length) commencing by a junction with Tramway No. 1 hereinbefore described at a point 12 yards or thereabouts north-west of the junction of Greengate Street with Barking Road passing thence in a southerly direction into and along Barking Road and terminating in that road by a junction with the existing tramway of the Corporation at a point 13 yards or thereabouts south-west of the junction of Greengate Street with Barking Road:

Tramway No. 1B will be laid as a double line throughout:

Tramway No. 2 (1 mile 1 furlong 4 chains or thereabouts in length of which 1 furlong 1·60 chains are single line and 1 mile

2·40 chains are double line) commencing in Greengate Street by a junction with Tramway No. 1 hereinbefore described at a point 20 yards or thereabouts north-west of the junction of Greengate Street with Barking Road passing thence in a southerly direction across the said Barking Road into and along Prince Regent's Lane to and terminating in Connaught Road by a junction with the existing tramway of the Corporation in that road at a point 14 yards or thereabouts east of the junction of Prince Regent's Lane with Connaught Road :

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Tramway No. 2 will be laid as a double line except for the following distances and at the following places where it will be laid as a single line (that is to say) :—

(A) In Prince Regent's Lane for a distance of 5·80 chains or thereabouts commencing at a point 36 yards or thereabouts south of the junction of Prince Regent's Lane with Barking Road and terminating at a point 47 yards or thereabouts south of the junction of Sussex Street with Prince Regent's Lane ;

(B) In Prince Regent's Lane for a distance of 5·80 chains or thereabouts commencing at a point 27 yards or thereabouts south of the junction of Randolph Road with Prince Regent's Lane and terminating at a point 28 yards or thereabouts south of the junction of Prince of Wales Road with Prince Regent's Lane ;

Provided always that Tramway No. 2 shall not be constructed unless and until the Corporation shall have passed a resolution approving of the intention to construct the same under and subject to the same conditions and provisions as a resolution of a local authority approving an intended application for a Provisional Order and such resolution shall have been approved by the Board of Trade :

Tramway No. 2A (1·10 chains or thereabouts in length) commencing by a junction with the existing tramway of the Corporation in Barking Road at a point 12 yards or thereabouts north-east of the junction of Prince Regent's Lane with Barking Road passing thence in a southerly direction into and along Prince Regent's Lane and terminating in Prince Regent's Lane by a junction with Tramway No. 2 hereinbefore described at a point 12 yards or thereabouts south of the junction of Prince Regent's Lane with Barking Road :

Tramway No. 2A will be laid as a double line throughout :

Tramway No. 3 (1 furlong 8·10 chains or thereabouts in length) commencing in the roadway of the Iron Bridge Canning Town at the point at which the boundary of the Borough of West Ham crosses that bridge by a junction with Tramway No. 10 authorised by the London County Council (Tramways and Improvements) Act 1906 at

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the termination thereof passing thence in an easterly direction along the said roadway into and along Barking Road and terminating by a junction with the existing tramway of the Corporation at its termination in that road at a point opposite the junction of Burnham Street with Barking Road:

Tramway No. 3 will be laid as a double line throughout.

As to construction of tramways in widened roads.

7. If any widening or any part of any widening of Greengate Street or Prince Regent's Lane shall be completed before the commencement of the construction of any tramway authorised to be constructed by this Order in the portion of the street or road so widened the Promoters may with the consent of the Board of Trade construct such tramway in the centre of the portion of the street or road as so widened.

Extending to this Order certain provisions of Acts of 1898 1900 and 1902 and Order of 1904.

8. Subject to the provisions of this Order the provisions hereinafter mentioned of the West Ham Corporation Acts and of the Order of 1904 shall so far as they are applicable in that behalf extend and apply mutatis mutandis to the tramways and undertaking by this Order authorised in like manner in every respect as if the tramways and undertaking authorised by this Order formed part of the tramway undertaking and for the purposes of tolls rates and charges the tramways shall be deemed to form part of the tramway undertaking. Provided that in the application of the said provisions the expressions referring to the tramways and tramway undertakings regulated or authorised by the said Acts and Order and the expression "this Act" shall be construed to mean respectively the tramways and the undertaking by this Order authorised and this Order. The provisions of the said Acts and Order hereinbefore referred to are—

The Act of 1898—

Section 6 (Corporation to work tramways);

Section 8 (Power to work tramways by mechanical power);

Section 9 (As to laying down and maintaining works necessary for using mechanical power);

Section 10 (As to use of electric power);

Section 12 (Byelaws);

Section 13 (Amendment of Tramways Act 1870 as to byelaws by local authorities);

Section 14 (Orders and byelaws);

Section 15 (As to recovery of penalties):

The Act of 1900—

Section 28 (For protection of the Great Eastern Railway Company);

Provided that in the application of the said section 28 to the tramways by this Order authorised subsection (3) of the said section shall be read as if the words "at the expense of the Corporation" were substituted for the words "at the expense of the Company" and subsection (5) of the said section shall be

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read as if Tramway No. 3 by this Order authorised were substituted in the said subsection for Tramways No. 6 and No. 9 therein mentioned and as if the words "ten yards from the respective entrances to the Canning Town Station and Canning Town Goods Depôt" were substituted for the words "thirty yards from the respective entrances to the Custom House and Forest Gate Stations";

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- Section 30 (As to interference with northern main outfall sewer);
- Section 33 (Inspection by Board of Trade);
- Section 34 (Tramways to be kept on level of surface of road);
- Section 35 (Further provisions as to construction of tramways);
- Section 36 (As to rails of tramways);
- Section 37 (Power to make interlacing lines &c. and crossings);
- Section 38 (Power to make crossings &c.);
- Section 39 (Application of road materials excavated in construction of works);
- Section 41 (Temporary tramway to be made where necessary);
- Section 46 (For protection of observatories);
- Section 47 (Regulations);
- Section 53 (Provision as to general Tramway Acts)

The Act of 1902—

- Section 13 (For protection of Postmaster-General);
- Section 15 (Penalty for not maintaining rails and roads);
- Section 45 (Tramway revenue):

The Order of 1904—

- Section 9 (Gauge and width of carriages);
- Section 11 (Attachment of brackets to buildings);
- Section 12 (Mortgage may include rents):

Provided that nothing in this Order shall empower the Promoters to construct any station for generating electrical power nor any works outside the borough nor to create or to permit a nuisance.

9. Section 30 (except subsections 1 and 5 thereof) of the Tramways Act 1870 in its application to the tramways shall have effect as if wires or apparatus laid in a road included wires or apparatus erected or carried over a street road or footpath.

Application of section 30 of Tramways Act 1870 to overhead wires.

10.—(1) It shall be lawful for the Postmaster-General in any street or public road or part of a street or public road in which he is authorised to place a telegraph to use for the support of such telegraph any posts and standards (with the brackets connected therewith) erected in any such street or public road by the Promoters in connexion with the tramways and to lengthen adapt alter and replace such posts standards and brackets for the

Use of tramway posts by Postmaster-General.

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A.D. 1907. purpose of supporting any telegraph and from time to time to alter any telegraph so supported subject to the following conditions:—

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- (a) In placing maintaining or altering such telegraph no obstruction shall be caused to the traffic along or the working or user of the tramways :
- (b) The Postmaster-General shall give to the Promoters not less than twenty-eight days notice in writing of his intention to exercise any of the powers of this section and shall in such notice specify the streets or public roads or parts of streets or public roads along which it is proposed to exercise such powers, and the manner in which it is proposed to use the posts standards and brackets and also the maximum strain and the nature and direction of such strain Any difference as to any matter referred to in such notice shall be determined as herein-after provided :
- (c) Unless otherwise agreed between the Postmaster-General and the Promoters the Postmaster-General shall pay the expense of lengthening adapting altering or replacing under the provisions of this section any post standard or bracket and the expense of providing and maintaining any appliances or making any alteration rendered necessary in consequence of the exercise of the powers of this section for the protection of the public or the unobstructed working or user of the tramways or to prevent injurious affection of the Postmaster-General's telegraphs or any telegraphic or telephonic line or electrical apparatus of the Promoters or by any regulations which may from time to time be made by the Board of Trade arising through the exercise by the Postmaster-General of the powers conferred by this section :
- (d) Unless otherwise agreed or in case of difference determined as herein-after provided all telegraphs shall be attached to the posts standards or brackets below the level of the trolley wires and on the side of such posts or standards farthest from the trolley wires Any difference as to the conditions of attachment shall be determined as herein-after provided :
- (e) Unless otherwise agreed no telegraph shall be attached to any post or standard placed in or near the centre of any street or public road :
- (f) The Postmaster-General shall cause all attachments to posts standards or brackets used by him under the powers of this section to be from time to time inspected so as to satisfy himself that the said attachments are in a proper state of condition and repair :
- (g) The Postmaster-General shall make good to the Promoters and shall indemnify them against any loss damage or expense which may be incurred by them through or in consequence of the exercise by the Postmaster-General of the powers conferred

upon him by this section unless such loss damage or expense be caused by or arise from gross negligence on the part of the Promoters their officers or servants :

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(h) The Postmaster-General shall make such reasonable contribution to the original cost of providing and placing any post standard or bracket used by him and also to the annual cost of the maintenance and renewal of any such post standard or bracket as having regard to the respective interests of the Promoters and the Postmaster-General in the use of the post standard or bracket and to all the circumstances of each case may be agreed upon between the Postmaster-General and the Promoters or failing agreement determined as herein-after provided :

(i) The Promoters shall not be liable for any interference with or damage or injury to the telegraphs of the Postmaster-General arising through the exercise by the Postmaster-General of the powers conferred by this section and caused by the maintaining and working of the tramways or by any accident arising thereon or by the authorised use by the Promoters of electrical energy unless such interference damage or injury be caused by gross negligence on the part of the Promoters their officers or servants :

(j) If it shall become necessary or expedient to alter the position of or remove any post standard or bracket the Postmaster-General shall upon receiving twenty-eight days notice thereof at his own expense alter or remove the telegraph supported thereby or at his option retain the post standard or bracket and pay the Promoters the value of the same Provided that if the Promoters or the body having the control of the street or public road object to the retention of the post standard or bracket by the Postmaster-General a difference shall be deemed to have arisen and shall be determined as herein-after provided.

(2) Nothing in this section contained shall prevent the Promoters from using their posts standards or brackets for the support of any of their electric wires and apparatus whether in connexion with their tramways or other municipal undertakings or shall take away any existing right of the Promoters of using or permitting the use by any company or person of their posts standards or brackets in connexion with the lighting of the streets or otherwise Provided that any difference between the Postmaster-General and such company or person in relation to the use of the posts standards or brackets by the Postmaster-General and such company or person respectively shall be determined as herein-after provided.

(3) All differences arising under this section shall be determined in manner provided by sections 4 and 5 of the Telegraph Act 1878 for the settlement of differences relating to a street or public road.

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Working agreements.

(4) In this section the expression "telegraph" has the same meaning as in the Telegraph Act 1869 and other expressions have the same meaning as in the Telegraph Act 1878.

(5) In this section the expression "Promoters" includes their lessees.

11.—(1) Subject to the provisions of this Order the Promoters may—

(a) Enter into and carry into effect contracts and agreements with any person authorised (whether expressly or otherwise) to enter into such contracts or agreements and owning or working any tramways connecting with any of the tramways of the Promoters with respect to—

(i) The formation of junctions between the tramways and the tramways belonging to such person ;

(ii) The working running over using maintaining and managing by either of the contracting parties of the tramways or any of the tramways of the other and the fixing collecting apportionment and distribution of the rates and profits arising therefrom or of a rent for the same ;

(iii) The supply under any agreement for the tramways of either of the contracting parties being worked and used by the other of motive power or of engines carriages and plant necessary for the purposes of such agreement Provided that no electrical energy shall be supplied or shall continue to be supplied by the Promoters under this section in any district in which any local authority or person shall be supplying energy under statutory authority without the consent in writing of such local authority or person ;

(iv) The management regulation interchange collection transmission and delivery of traffic coming from or destined for the undertakings of the contracting parties ;

(v) The appointment of officers and servants and generally all such matters as may be deemed desirable for enabling the tramways of the contracting parties to be worked in connection :

(b) Confirm subject to this section any such contracts and agreements entered into before the confirmation of this Order.

(2) Any contract or agreement under this section shall be submitted to and be subject to the approval of the Board of Trade.

(3) In this section the word "tramways" includes light railways and parts of tramways and light railways.

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